

**Court No. - 36**

**Case :-** WRIT - C No. - 28615 of 2018

**Petitioner :-** Upkhand Adhikari, Vidyut Sahari Vitran And Another

**Respondent :-** Nitin Agarwal And Another

**Counsel for Petitioner :-** Baleshwar Chaturvedi

**Hon'ble Mrs. Sunita Agarwal,J.**

The order passed by the Permanent Lok Adalat directing for refund of amount of Rs. 77,343/- with 9% interest per annum to respondent no. 1 is being challenged on the ground that the Permanent Lok Adalat had no jurisdiction to enter into the dispute. The claim petition filed before the Permanent Lok Adalat for refund of the said deposit was not maintainable inasmuch as, the said deposits were made by the respondent no. 1/claimant pursuant to the recovery issued by the petitioner for arrears of electricity bills of father of respondent no. 1.

In case, the respondent no. 1 was aggrieved by the assessment/recovery issued by the petitioner, it was open for him to take recourse of Clause 6.5 as contained in Chapter VI of the Electricity Supply Code 2005.

The matter requires consideration.

Issue notice to respondent No.1 returnable at an early date.

Steps to be taken within one week by Registered Post A.D.

List on the date fixed in the notice.

By the next date fixed, the respondents may file counter affidavit.

Till the next date of listing, the effect and operation of the award dated 21.4.2018 passed by the Permanent Lok Adalat shall remain stayed.

**Order Date :-** 24.8.2018

Pratima